

Court No. - 21

Case :- WRIT - C No. - 2579 of 2017

Petitioner :- Smt. Usha Srivastava

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Birendra Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble V.K. Shukla,J.

Hon'ble Mrs. Sangeeta Chandra,J.

Notice on behalf of respondent No. 1,2,4 has been accepted by learned standing counsel

Issue notice to opposite party No.5 returnable within six weeks.

List after six weeks.

Order Date :- 19.1.2017

S Rawat

Court No. - 21

Case :- WRIT - C No. - 2579 of 2017

Petitioner :- Smt. Usha Srivastava

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Birendra Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble V.K. Shukla,J.

Hon'ble Ashok Kumar,J.

Sri Kartikey Sharan, Advocate has requested for according him two weeks time to file counter affidavit to the grounds mention in the writ petition. One week thereafter is allowed to the petitioner for filing rejoinder affidavit.

List this case on 11.04.2017.

Order Date :- 20.3.2017

SK Srivastava

Court No. - 29

Case :- WRIT - C No. - 2579 of 2017

Petitioner :- Smt. Usha Srivastava

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Birendra Singh

Counsel for Respondent :- C.S.C.,Kartikya
Saran,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Rajiv Joshi,J.

Sri Mahboob Ahmad, learned counsel for respondent Nos. 2 to 4 prays for and is allowed two weeks' time to file counter affidavit.

List thereafter for admission/final disposal.

Order Date :- 3.10.2018

Nirmal

Court No. - 29

Case :- WRIT - C No. - 2579 of 2017

Petitioner :- Smt. Usha Srivastava

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Birendra Singh

Counsel for Respondent :- C.S.C.,Kartikeya Saran,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Rajiv Joshi,J.

The case of Sri Mahboob Ahmad, learned counsel for the respondents are reported to be adjourned upto 02.11.2018.

In view of the above, list this petition after the aforesaid date.

Order Date :- 25.10.2018

Sweety

Court No. - 4

Case :- WRIT - C No. - 2579 of 2017

Petitioner :- Smt. Usha Srivastava

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Birendra Singh

Counsel for Respondent :- C.S.C.,Kartikeya Saran,Mahboob Ahmad

Hon'ble Bala Krishna Narayana,J.

Hon'ble Prakash Padia,J.

Per Hon'ble Prakash Padia,J.

Heard learned counsel for the parties.

The present writ petition has been filed with the following prayers :-

"a. issue a writ, order or direction in the nature of certiorari quashing the situation report dated 3.6.2016 contained in Annexure no.6 to this writ petition.

b. issue a writ, order or direction in the nature of mandamus commanding the respondents to specially respondent no.3 and 4 to forthwith disconnect the 2 KW LM V-1 electricity connection granted in the name of respondent no.5 in House No.452-90A-18F Shivaji Nagar, Allapur P.S. George Town District Allahabad."

The facts in brief as narrated in the writ petition are that out of the wedlock of petitioner and late Hari Narain Srivastava, two sons and two daughters were born. The respondent no.5 is eldest son of the petitioner and late Hari Narain Srivastava. A house was constructed over the property of the late Hari Narain Srivastava situated in Khasra No.331 area 1.0600 hectare in Village- Dhabhaon, Pargana Arail, Tehsil Karchhana, District Allahabad and the same was given to the respondent no.5, who is still residing in the said house along-with his children being the sole owner of the said house. Looking to the bad conduct and habits of respondent no.5, late Hari Narain Srivastava during his life time after dispossessing the respondent no.5 from his entire movable and immovable properties, executed a Will deed dated 1.12.2014. Thereafter, husband of the petitioner died on 7.2.2015. The respondent no.5 started interfering in the peaceful use and occupation of the petitioner. The petitioner filed Original Suit No.1229 of 2015 (Smt. Usha Srivastava Vs. Atul Narain and others) before the court of Civil Judge (Senior Division), Allahabad claiming permanent prohibitory injunction against the respondent no.5. The trial court granted temporary prohibitory injunction against the respondent no.5. Thereafter,

respondent no.5 moved an application along-with forged documents before the respondent no.3 for obtaining separate electricity connection in his own House No.452-90A-18F Shivaji Nagar, Allapur, Allahabad over which he claimed his occupation and possession. When the petitioner came to know regarding the same, she moved an application/objection dated 25.4.2016 before the competent authority i.e. Purvanchal Vidhut Vitran Nigam Ltd., Allahabad for not allotting any connection in the name of respondent no.5. The respondent no.3 asked for the situation report from the concerned official and situation report was submitted on 3.6.2016 recommending for allotting a new electricity connection to the respondent no.5. In this regard respondent no.5 also filed a Writ Petition No.29042 of 2016 (Atul Narain Vs. S.D.O., Vidyut Vitran and another) before this Court, which was disposed of by order dated 21.6.2016 permitting the respondent no.5 to approach Executive Engineer, respondent no.3 for grant of electricity connection. The respondent no.3 allotted a new electricity connection of 2 KW LM V-1 in the name of respondent no.5 showing his address as House No.452-90A-18 F Shivaji Nagar, Allapur P.S. George Town District Allahabad hence present writ petition has been filed.

In the counter affidavit filed on behalf of respondent no.5 it is stated that the electricity connection was given to the respondent no.5 in the light of the provisions of the Electricity Supply Code, 2005. It is further stated in the counter affidavit that paragraph 4.2 of the Electricity Supply Code, 2005 deals with the situation of disputes between the parties and if the petitioner has any further grievance in the matter, she can avail an alternative remedy to approach the forum established under Clause 7.10 of the Electricity Supply Code, 2005.

Heard learned counsel for the parties.

With the consent of learned counsel for the parties, the writ petition is being disposed of at the admission stage itself.

From perusal of the record it appears that the respondent no.5 earlier filed a writ petition before this Court being Writ C No.29042 of 2016 (Atul Narain Vs. S.D.O. Vidyut Vitran and another). The said writ petition was finally disposed of by coordinate Bench of this Court on 21.06.2016 with the following order :-

"Admittedly the petitioner has already filed a civil suit claiming share in the property. If the petitioner requires any further direction in the matter of installation of meter for supply of electricity in his own name in the premises in question, he may make an application in the pending suit or else he may approach the Executive Engineer under "Annexure no.4.2" of

Disposed of."

From perusal of the record it appears that a civil suit was filed by the petitioner being Original Suit No.1229 of 2015 in the court of Civil Judge (Senior Division, Allahabad). The grievance of the petitioner in the present writ petition is that respondent no.5 is trying to create an evidence in his favour to justify his claim over the House No.452-90A-18 F Shivaji Nagar, Allapur P.S. George Town District Allahabad. It is further stated in the writ petition that respondent no.5 is obtaining the new electricity connection with malice intention in order to defeat the claim of the petitioner in the aforesaid civil proceedings.

From perusal of the facts as narrated above it is clear that after verifying the possession on the spot a new electricity connection was given by the authorities in favour of respondent no.5. In this regard as per the provisions contained in the Electricity Supply Code, 2005 every person is entitled for new electricity connection. Further if the petitioner is aggrieved against the situation report dated 3.6.2016, copy of which is appended as annexure 6 to the writ petition, she has remedy to approach the forum established under Clause 7.10 of the Electricity Supply Code, 2005.

In the facts and circumstances of the case, without interfering with the situation report dated 3.6.2016, we dispose of the writ petition with the directions that neither the electricity connection issued by the electricity authorities in favour of the respondent no.5 nor the situation report dated 03.6.2016 contained in annexure 6 to the present writ petition will be treated as evidence as claimed over the House No.452-90A-18 F Shivaji Nagar, Allapur P.S. George Town District Allahabad against the petitioner in the civil suit filed by the petitioner being Original Suit No.1229 of 2015.

Accordingly, present writ petition is disposed of finally.

Order Date :- 9.9.2019

Pramod Tripathi